

Court No. - 29

Case :- WRIT - C No. - 18510 of 2019

Petitioner :- Achchaye Lal Yadav

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Rajesh Yadav, Vijay Kumar
Srivastava

Counsel for Respondent :- C.S.C., Narendra Kumar
Tiwari

Hon'ble Pankaj Mithal, J.

Hon'ble Prakash Padia, J.

Heard learned counsel for the petitioner and Sri Narendra Kumar Tiwari, learned counsel for the respondent nos.2 and 3.

The petitioner is a tenant of shop situate in Indrapuri Shopping Complex and has applied for the grant of electricity connection as the landlord got the earlier connection disconnected.

Learned counsel for the petitioner alleges that all dues in respect of the earlier connection have already been settled and that the owner and landlord of the shop is not giving his consent for the new connection or no objection certificate as there is a dispute of rent between him and the landlord.

It appears that on account of the non furnishing of the consent/no objection certificate of the landlord the application of the petitioner for grant of electricity connection is not being processed with.

The application for grant of electricity connection has to be processed in accordance with the provisions of Clause 4.3. and 4.4. of the U.P. Electricity Supply Code-2005.

Clause 4.4 specifically provides that applications for new connection in prescribed form and complete in all respects accompanied by the prescribed Registration-cum-processing fee, shall be filed with the proof of ownership of the premises such as registered sale deed or partition deed or succession certificate or last Will or proof of occupancy such as rent receipt etc.

It also provides for furnishing indemnity bond as provided in annexure 4.2 to the Code in case of litigation regarding ownership of the premises or alternatively owners consent for getting new electric connection.

In view of the aforesaid provisions, the application for the grant of electricity connection apart from proof of ownership or proof of occupancy must be accompanied by an indemnity bond where there is some litigation regarding ownership or with the owner and landlord.

In view of the aforesaid facts and circumstances, we dispose of the writ petition with the direction to the Executive Engineer to proceed in accordance with the above provisions and to inform the petitioner of the necessary documents or formalities which are required to be completed so as to process his application for the sanction of the electricity connection. In case the petitioner is unable to submit the consent of the landlord or the no objection certificate of the landlord and establishes that he is in serious litigation with the landlord, the Executive Engineer may require the petitioner to furnish indemnity bond as provided and proceed thereafter for the consideration of the application.

The above exercise shall be completed by the Executive Engineer as far as possible within a period of six weeks from the date of submission of this order/completion of the formalities by the petitioner.

The writ petition is disposed of.

Order Date :- 28.5.2019

Pramod Tripathi